IN THE SUPREME COURT OF INDIA

REVIEW PETITION ARISING FROM CIVIL APPEAL NO. 20982 OF 2017

Note:

Please mention the case number of the Petition referred to a larger Bench for re-consideration of the Division Bench ruling rendered in C.A. No.20982/2017.

(Indore Development Authority v. Shailendra (Dead) through LRs & others connected with S.L.P. Nos.(Civil) 10742/2008 and companion petitions of Yogesh Neema & Others v. State of M.P. & Others (D.D. 8th February 2018)

NOTE:

Since the cause title of the proceedings now pending, on reference doubting the correctness of the Division Bench ruling in the Indore Development Authority's Civil Appeal, appropriate cause title has to be correctly incorporated in this application for intervention).

IN THE SUPREME COURT OF INDIA AT NEW DELHI

In the matter of :-

Smt. B. Sharadamma and others Applicants

And:-

The State of Karnataka and others Respondents

I.A. NO. /2018

APPLICATION FOR INTERVENSION

To,

The Hon'ble Chief Justice of India,
and his Companion Justices of the
Hon'ble Supreme Court of India,
New Delhi.

The humble application of the above named applicants above for intervention

MOST RESPECTFULLY SHOWETH AS FOLLOWS:-

1. The land bearing Survey No.19/2 of Kadirenahalli Village, Uttarahalli Hobli, Bangalore South Taluk, being the

subject matter of this application. The acquisition of the sadi land was proposed and notified under Section 4 (1) of the Land Acquisition Act, 1894 hereinafter referred to, for the sake of brevity as “the Act of 1894”, for the benefit of a private Co-operative Society called the Karnataka Gruha Nirmana Sahakara Sangha Ltd., No.554, 9th Cross, 7th Block, Jayanagar, Bangalore – 560 082, on 24.4.1986. The same culminated in the issuance and publication of a final notification under Section 6 (1) of the said enactment, in the Official Gazette of the State of Karnataka published on 5.5.1987. It was a common notification in respect of the two other lands, as well, which had been similarly notified and declared as required for witting and benefitting the said Society.

2. Unfortuantely, althrough, for the last over 31 years there have been a spate of litigations in respect of the land belonging to the applicants herein who questioned, not only the preliminary notification but also the Final Notification dated 5.5.1987, on diverse grounds.

3. A writ petition in W.P. No. 8958/1987 had been filed by the 1st applicant herein, in the Hon'ble High Court of Karnataka at Bangalore, questioning the acquisition of the land mentioned above, during the pendency of which petition the State Government withdrew, from acquisition, the said land of the applicants, under Section 48 (1) of the Act of 1894, on 15.7.1989. Assailing the legality and propriety of the said notification of withdrawal from acquisition the said Society filed a writ petition in W.P. No.17558/21989 in the Hon'ble High Court of Karnataka at Bangalore.

4. The aforementioned writ petition in W.P. No.8958/1987 filed by the 1st applicant herein having been dismissed on 14.11.1985, she felt aggrieved thereby and hence filed an intra-court appeal under Section 4 of the Karnataka High Court Act, 1961, before a Division Bench of the said court in W.A. No.4596/1995.

5. In view of the very land being the subject matter of the proceedings in W.P. No.17558/1989 mentioned above filed by the Society, the said petition was referred to the same Division Bench, for being heard alongwith W.A. No.4596/1995 of the 1st

applicant herein. This was so ordered in exercise of the jurisdiction and powers of the learned single judge under Sections 8 and 9 of the Karnataka High Court Act, 1961. The reason for such a reference made to the Division Bench was that inconsistency in judicial opinion could be avoided, if not only the writ appeal of the 1st applicant herein but also the writ petition of the Society were heard together by the same Division Bench which could pronounce upon the merits of both the cases by its common judgment.

6. Providentially for the applicants herein the writ appeal filed by the 1st applicant was allowed on 28.7.1997. Resultantly, the writ petition No.17558/1989 of the Society which had been referred to the Division Bench as mentioned above was dismissed as having become academic and infructuous in nature.

7. It would, at this stage be quite apposite to bring to the kind notice of this Hon'ble Court that in W.P. No.8958/1987 – the first in the series of writ petitions filed in respect of the land in question, assailing the acquisition thereof, an interim order directing stay of dispossession of the 1st applicant from the

land in question had been ordered on 19.6.1987. The same was in operation till 14.11.1995. Even in the writ appeal No.4596/1995 as also during pendency of W.P. No.17558/1989 such an order of stay of dispossession of the 1st applicant had been in operation from 19.1.1996 to 22.7.1997.

8. The de-notification of the land as aforementioned having been ordered by the State Government on 4.10.1989, apparently in exercise of its powers under Section48 (1) of the Act of 1894, the interim order which was in operation till 4.1.1990 was vacated in writ appeal No.373/1990 that the Society had filed. The said writ appeal was allowed by a Division Bench of the Hon'ble High Court, by its verdict dated 2.3.1990, notwithstanding which the interim order earlier granted on 4.10.1989 was directed to be continued till the disposal of the writ petition No.17558/1989, which was dismissed on 28.7.1997, as having become infructuous.

9. In view of the de-notification and the dismissal of the writ petition filed by the Society, the applicants conveyed an extent of 2250 sq.feet of land comprised in the aforementioned

survey number jointly in favour of a certain Smt. Neelima Shylendra Nail W/o. Shylendra Digamber Naik and Shylendra Digamber Naik on 19.11.1997. As on the said date there was no embargo, restraint or moratorium on the absolute right of the applicants in so conveying the said extent of the property in favour of the purchasers named above. Feeling aggrieved by, not only the dismissal of the W.P. No.17558/1989 filed by the Society, but also by the judgment of the same Division Bench allowing writ appeal No.4596/1995 filed by the 1st applicant herein the Society approached this Hon'ble Court in S.L.P. (Civil) Nos. 22521/1997 and 22535/1997 respectively. Even in the said Special Leave Petitions which were later registered as Civil Appeal No. 5707/1998 and 5708/1998 respectively, an interim order as regards the status-quo regarding the land in question be maintained had been granted.

10. This Hon'ble Court, by its common order allowed the said appeals on 3.10.2002, setting aside the order and judgment assailed therein and remitting the matter back to the Hon'ble High Court of Karnataka for a ***de novo*** consideration of the said writ petition and the writ appeal.

11. Upon remand, the writ petition of the Society was allowed on 1.12.2003, on the ground that the Society had not been heard before the land in question was de-notified, and that, the same was, interalia, opposed to the basic principles of natural justice. It was further directed in the said verdict that, in the event of the State Government being still desirous of withdrawing the land in question from the purview of acquisition, it had to do so only after the Society, which was the beneficiary in acquisition was notified and heard in the matter. It was also observed therein that the very many events which had transpired subsequent to the said de-notification could also be brought to the notice of the Government for an objective consideration thereof. Such a direction was issued in the wake of an application dated 31.10.2003 that the 1st applicant herein had filed in the said writ petitions in which the subsequent events which had transpired in respect of the land in question had been placed on record for its consideration before the Division Bench.

12. In view of the order dated 1.12.2003, so passed by the Division Bench, notices were issued to both the parties concerned and the Minister for Revenue of the State of

Karnataka made an order on 5.2.2004 whereby he declined to withdraw the land in question from the purview of acquisition, unlike on the earlier occasion when the land had been ordered to be notified. Not unnaturally feeling aggrieved thereby the applicants questioned the same on 12.2.2004 in W.P. No. 6073/2004 in the Hon'ble High Court of Karnataka, at Bangalore. Even in the said writ appeal an interim order of status-quo as to the possession of the said land in question had been directed to be maintained. That was ordered on 1.3.2004. The said writ petition of the applicants herein was allowed by a learned single judge on 15.7.2005, whereby he remanded the matter to the Government (the Minister for Revenue) for a fresh-consideration of the matter. The said remand order was challenged by the Society in W.A. No.3667/2005 and companion appeals. By its judgment dated 23.2.2007 the said writ appeals of the Society were allowed, thereby setting aside the order of the learned single judge, passed in W.P. No.6073/2004. Liberty was also granted to the 1st applicant to approach the State Government to urge before it that the 4th respondent had played a fraud on the Government in the matter of acquisition of the land in its favour and for its benefit. Such a contention was urged before

the Government which issued a notice dated 27.4.2007 to the Society, it did not respond to the said notice nor did it reply the same. On the other hand the said notice issued by the Government was directly challenged by the Society in W.P. No.7405/2007 in which an interim order of stay of further proceedings in pursuance to the show cause notice dated 2.5.2007 was ordered by the Hon'ble Court.

13. In the interregnum, the applicants had questioned the judgment of the Division Bench, rendered in W.A. No.3667/2005 and companion proceedings, before this Hon'ble Court. The same stood dismissed on 5.10.2007. Thereupon W.P. No.7405/2007 to which the 1st applicant or any other applicant had not been impleaded as a party impelled the 1st applicant to seek to be impleaded as a party to the said petition.

14. The aforementioned writ petition in which the show cause notice issued by the Government had been challenged was allowed by a learned single judge of the Hon'ble High Court on 11.10.2007, however finding that the 1st applicant continued in the possession of the land in question and also

holding that the show cause notice assailed in the writ petition could not have been issued by the Government. Feeling aggrieved by the verdict rendered in W.P. No.7405/2007 mentioned above, the 1st applicant filed an intra-court appeal in W.A. No.2406/2007 before a Division Bench of the Hon'ble High Court. Even in the said writ appeal, there was an interim order of stay of the operation of the order dated 11.10.2007 passed in the writ petition. The said interim order was made absolute on 6.1.2009. The State Government on the other hand, also questioned the order dated 11.10.2007 in W.A. No.367/2008, contending that the quashing of the said notice was not tenable. During the pendency of the said proceedings the 1st applicant filed yet another writ petition in W.P. No.6530/2008 contending that the entire acquisition proceedings has lapsed under Section 11 A of the Act of 1894, since no award has been passed or approved within the outer-limit of time prescribed therein, not only the State Government, but also the Society made a candid statement therein that an award was passed and approved by the Government on **20.2.1989**. The said writ petition was dismissed on 14.7.2009. The same was questioned in W.A. No.3783/2009 which was also dismissed by a Division Bench on 18.10.2010.

15. As it is quite apposite to bring to the kind notice of this Hon'ble Court in the context of the instant application for intervention, that even in the said writ petition No.6530/2008 an interim order dated 20.6.2008 had been passed regarding status-quo as to the possession of the land in question being maintained. It was in force till 14.7.2009. Even in the writ appeal so filed by the applicants in W.A. No.3783/2009 the said interim order was continued and was in force till 18.10.2010. The said writ appeal having been dismissed, as mentioned above a Review Petition was filed by the applicants, under Order 47 Rule 1 of the Code of Civil Procedure, 1908 in R.P. No.490/2010. The said petition was also dismissed by the Hon'ble High Court by its order dated 24.2.2012. The said judgment and order passed in the writ appeal and the Review Petition having been assailed by the applicants in Special Leave Petitions (Civil C.C. No.7685 and 7686/2013, during its pendency the applicants filed a writ petition under Article 226 of the Constitution of India in W.P. No.8901/2014 (LA) on 17.2.2014 in view of THE RIGHT TO FAIR COMPENSATION AND TRANSPARENCY IN LAND ACQUISITION, REHABILITATION AND RESETTLEMENT

ACT, 2013 (Central Act No.30 of 2013) having been brought into force with effect from 1.1.2014 and the said enactment repealing the Act of 1894. Contending that, in view of the said enactment the entire acquisition proceedings have lapsed and that a declaration be so made with a consequential direction for quashing the entire acquisition proceedings and also for issuing writ of mandamus that the applicants shall not be dispossessed from the land in question, the said writ petition had been filed.

16. The said factum of the later development and events were brought to the notice of this Hon'ble Court at the hearing of the said Special Leave Petitions on 3.3.2014 when the said petitions were ordered to be dismissed, recording the statement so made, on behalf of the applicants.

17. W.P. No.8901/2014 (LA) has since been allowed by a learned single judge of the Hon'bel High Court, the same is the subject matter of an intra-court appeal filed by the Society in **W.A. No……..(Please also mention whether the State Government has also filed any writ appeals from the**

order passed in W.P. No.8901/2014 for completion of the fair narration of the facts and chronology of events).

18. The said writ appeal is pending adjudication before a Division Bench of the Hon'ble High Court, which has directed issuance of notice thereof to the applicants.

19. The necessity of and the justification, warrant and reason for the applicants herein presenting this application for intervention is that the ruling rendered by a Division Bench of this Hon'ble Court on 8.2.2018 in C.A. No. 20982/2017 and companion appeals of the *Indore Development Authority v. Shailendra (Dead) through LRs & others* having been doubted, the same has been referred for being considered/re-considered and that in the said proceedings which are pending adjudication before this Hon'ble Court in the petitions shown in the cause title to this application, this Hon'ble Court has observed that the High Courts in the country are requested not to proceed with the hearing of and decisions being rendered on the interpretation of Section 24 (2) of the Fair Compensation Act, during the pendency of the proceedings before this Hon'ble Court, in the aforementioned petitions.

20. In view of the sweep and ambit of Article 141 of the Constitution of India and the binding nature of the decisions and rulings of this Hon'ble Court, as a precedent under the doctrine of ***stair decises***, it is most respectfully submitted that the verdict which would be ultimately rendered in the instant proceedings would be binding on the Hon'ble High Court of Karnataka, as well, and would govern the result and out-come of the writ appeals which have arisen from the order of the learned single judge, rendered in W.P. No.8901/2014 (LA). Hence, the applicants are genuinely and vitally interested in the subject matter of the instant cases in which they sincerely desire to put forth their contentions and views on the correctness or otherwise of the ruling rendered in Indore Development Authority's case and on the interpretation of Section 24 (2) of the Central Act as also on the aspect of all the acquisition proceedings initiated under the Act of 1894 having lapsed. Therefore, they most respectfully seek from this Hon'ble Court an audience in the matter, and pray that this Hon'ble Court be pleased to afford them an opportunity of putting forth their views and contentions in the instant cases, as interveners.

21. In the event of this Hon'ble Court feeling it expedient to withdraw the aforementioned writ appeals which have arisen from the order dated 18.1.2014 in exercise of this Hon'ble Courts plenary power and jurisdiction under Article 139 A of the Constitution of India, even the same would be beneficial to the applicants who are agreeable for the same. Even the said withdrawal would enable them to have their say in the matter, before this Hon'ble Court.

22. No other application has been filed by the applicants herein or by any of them previously in this Hon'ble Court for the same or similar relief as prayed for herein.

PRAYERS:

23. For the foregoing reasons, it is respectfully prayed that this Hon'ble Court be pleased to:

permit the applicants herein to come on record in the instant proceedings as **interveners,** and to have their say in the matter, in the interest of justice and equity.

24. It is respectfully submitted and prayed accordingly.

NEW DELHI ADVOCATE FOR THE APPLICANTS

DATE

NOTE:

After deeply pondering over the entire conspectus of the case, the very many litigations which have hitherto gone on in respect of the land in question and also the pendency of writ appeals which have arisen from the final order in W.P. No.8901/2014, I have, quite meticulously settled the instant application for intervention, since, transfer of the proceedings under Article 139 A, being in the exclusive and plenary discretion of the Hon'ble Supreme Court, an application for transfer of the writ appeals, though had been initially intended by me is not advised. On the other hand in the application for intervention itself an alternative request has also been made to that effect, for transfer of the proceedings.

The various orders, judgments, notifications, etc., which have been referred to in this application have to be filed with the Intervention Application, referring to the same as Annexures. Authenticated copies thereof have to be appended/enclosed to this application.